Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 501

RESOLUTION EXPRESSING STRONG SUPPORT FOR THE MINDANAO STATE UNIVERSITY - COLLEGE OF LAW TO CONTINUE PROVIDING QUALITY LEGAL EDUCATION FOR THE BANGSAMORO PEOPLE

WHEREAS, Section 6 (b) of Republic Act No. 1387, enacted by Congress of the Philippines in 1955, and otherwise known as the *"Charter of the Mindanao State University (MSU)"*, as amended by Republic Act No.1893, Republic Act No. 3791, and Republic Act No. 3868 mandated the creation of its College of Law by the MSU Board of Regents as part of the University's mission to provide higher education in the Region;

WHEREAS, in 1981, pursuant to this mandate, the MSU Board of Regents formally established the MSU - College of Law, which has become a vital institution for legal education in Mindanao and the Bangsamoro, producing highly qualified lawyers who are committed to serve the region and the country;

WHEREAS, Republic Act No. 7662, otherwise known as the *"Legal Education Reform Act of 1993"*, created the Legal Education Board (LEB) and transferred the regulatory and supervisory functions over legal education from the Department of Education, Culture, and Sports (DECS) to the LEB under Section 12 of the said Act;

WHEREAS, Section 12 of Republic Act No. 7662 explicitly provides that the law shall apply to all schools and colleges of law under the supervision of the DECS at the time of its enactment;

WHEREAS, since its establishment, the MSU - College of Law has produced members of the legal profession who have served not only Mindanao but also the entire country with distinction, advancing justice and upholding the rule of law, as evidenced by the LEB's Report on the 10-Year Performance of Legal Education Institutions in Bar Examinations (2011-2020), which reveals that the MSU - College of Law is the leading law school in the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM), having produced four hundred twenty-two (422) lawyers during this period;

WHEREAS, the legislative intent behind Republic Act No. 7662, as reflected in the Senate Committee Report No. 32 of the Committee on Education, Arts and Culture dated November 11, 1992 and Minutes of the Amendments and Interpellation dated October 05, 1993 on Senate Bill No. 100, shows that State Universities and Colleges, which have their own charters, are not covered by the said law;

WHEREAS, graduates of the MSU - College of Law have significantly contributed to the establishment of the BARMM and have actively participated from the negotiation phase until the present crafting of crucial legislation by the Bangsamoro Parliament;

WHEREAS, the LEB issued Resolution No. 231-18, canceling the accreditation of the law program of the MSU - College of Law and ordering the closure of its program in all its campuses, effective Academic Year 2025-2026, citing non-compliance with LEB requirements;

WHEREAS, the closure order issued by the LEB curtails access to legal education for the Bangsamoro community, particularly affecting underprivileged students with limited opportunities to pursue legal studies in other institutions;

WHEREAS, the MSU - College of Law firmly asserts its independence from the jurisdiction of the LEB and its cease-and-desist order, emphasizing that, according to Section 6 of Republic Act No. 1387, as amended, the authority over the operation and administration of the College lies solely with the Board of Regents, and further contends that, having been established in 1981, 12 years before the enactment of the Republic Act No. 7662, it was never subject to the supervision of the DECS and does not fall under the purview of the LEB;

WHEREAS, the MSU - College of Law's dedication to addressing the unique challenges and needs of the region ensures that its graduates are equipped with comprehensive legal education that are intimately attuned to the values and aspirations of the Bangsamoro people they will serve, while its continued operation and commitment to realizing its vision of producing competent legal professionals who possess knowledge of both Philippine laws and Islamic Personal Laws, as well as a thorough understanding of the historical, cultural, and legal foundations of BARMM, play a critical role in ensuring the stability, and governance of Bangsamoro Autonomous Region;

WHEREAS, the Parliament recognizes the importance of preserving and protecting the continued operation of the MSU - College of Law and the detrimental impact that the closure of its law program would have on the region's legal and socio-economic landscape:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To express its strong support for the Mindanao State University - College of Law to continue providing quality legal education for the Bangsamoro people.

RESOLVED, FURTHER, To forward this Resolution to the Supreme Court of the Philippines, Senate of the Philippines, House of Representatives, LEB, and MSU System Board of Regents.

ADOPTED, *Rabi Al-Akhir* 12, 1446/October 15, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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